

Safe Motherhood and Reproductive Health Rights Act, 2018

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Safe Motherhood and Reproductive Health Rights Act, 2075".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Emergency Obstetric Care" means the service available twenty-four hours to manage any complications that may arise during pregnancy, childbirth or postpartum condition.

(b) "Basic Emergency Obstetric Care" means basic services such as administering antibiotics, magnesium sulfate or oxytocin, removing retained placenta, delivering the baby with the help of instruments (vacuum) and cleaning the uterus in case of abortion.

(c) "Adolescent" means a person in the age group of ten to nineteen years.

(d) "Abortion" means the act of the embryo exiting or being removed from the uterus before it is naturally capable of being born.

(e) "Contraception" means a method that prevents pregnancy by creating an obstruction in the normal processes of ovulation, fertilization of sperm and egg, or implantation.

(f) "Contraceptive means" means hormonal or other means that assist in the act of contraception.

(g) "Abortion service" means the abortion service provided by a licensed health worker in a licensed health institution for abortion, completing the procedure according to this Act.

(h) "Antenatal service" means the service referred to in Section 5.

(i) "Pregnancy" means the period from the first day of the last menstruation before conception until the fetus is in the woman's uterus.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(k) "Newborn Essential Care" means services including keeping the newborn warm and clean, caring for the umbilical cord and eyes, breastfeeding, and giving necessary vaccines.

(l) "Newborn Emergency Care" means services related to administering antibiotics in case of infection in the newborn, managing hypothermia, and managing respiratory problems of such infants.

(m) "Family Planning" means planning to determine the desired number of children or birth intervals using or without using any contraceptive means.

(n) "Reproductive Health" means the state of physical, mental and social health related to the reproductive

system, processes and functions.

(o) "Reproductive health rights" means the rights referred to in Section 3.

(p) "Reproductive Health Morbidity" means conditions adversely affecting the reproductive system due to reproduction, pregnancy, abortion, childbirth and sexual behavior, and the term also includes prolapse, obstetric fistula, infertility, cervical cancer and other similar conditions affecting the reproductive system.

(q) "Midwife" means a trained health worker who performs the delivery of a pregnant woman.

(r) "Ministry" means the Ministry of the Government of Nepal dealing with health matters.

(s) "Comprehensive Emergency Obstetric Care" means, in addition to the basic emergency obstetric care mentioned in clause (b), blood transfusion and surgical services.

(t) "Safe Motherhood" means the maternity services provided to women during pregnancy, childbirth, and postpartum period according to this Act.

(u) "Health institution" means a hospital, nursing home, medical college or health institution operated at the government, non-government, community or private level, and the term also includes a primary health center, health post or any other health institution operated under any name.

Chapter-2

Reproductive Health Rights

3. Reproductive Health Rights: (1) Every woman and adolescent shall have the right to obtain education, information, counseling and services related to sexual and reproductive health.

(2) Every person shall have the right to obtain reproductive health-related services, counseling, and information.

(3) Every woman shall have the right to safe motherhood and reproductive health. Every woman shall have the right to determine birth intervals or the number of children.

(4) Every person shall have the right to receive information about and use contraceptive means.

(5) Every woman shall have the right to obtain abortion services under this Act.

(6) Every woman shall have the right to receive nutritious, balanced food and physical rest during pregnancy, postpartum and in conditions of reproductive health morbidity.

(7) Every woman shall have the right to receive necessary counseling, antenatal and delivery services, and postnatal contraceptive services from a midwife.

(8) Every woman shall have the right to receive emergency obstetric care, basic emergency obstetric care, comprehensive emergency obstetric care, essential newborn care and newborn emergency care.

(9) Every person shall have the right to receive necessary reproductive health services at various stages of their life cycle in an accessible, acceptable and safe manner.

(10) Every person shall have the right to choose reproductive health services. 4. To Remain Confidential: The reproductive health service received by each person and the information relating thereto shall remain confidential. Chapter-3

Safe Motherhood and Newborn

5. Right to Receive Antenatal Service: (1) Every woman shall have the right to go to a health institution and get tested or examined to determine whether she is pregnant or not.

(2) The concerned health institution shall provide the following antenatal services to a pregnant woman coming to receive services pursuant to sub-section (1):-

(a) To conduct at least four health check-ups during a normal pregnancy,

(b) To conduct health check-ups in prescribed circumstances other than those mentioned in clause (a) as per the advice of a doctor or skilled health worker,

(c) To receive appropriate counseling regarding health care,

(d) To receive safety measures to be adopted during pregnancy and minimum services. 6. Maternity Services to be Provided: (1) A government and community health institution providing delivery services shall arrange for a skilled health worker, or failing that, a midwife or other trained health worker to provide delivery services.

(2) Non-government and private health institutions meeting the standards set by the Government of Nepal shall provide respectful maternity services. 7.

Emergency Obstetric and Newborn Services: (1) A government and community health institution providing delivery services shall provide emergency obstetric and newborn services. (2) Non-government and private health institutions meeting the standards set by the Government of Nepal shall provide emergency obstetric and newborn services. (3) If the health institution referred to in sub-sections (1) and (2) cannot manage the complications arising while providing services, it shall refer the case to a government or community health institution as far as possible, and if not possible, to a non-government or private health institution. (4) It shall be the duty of the concerned health institution to manage the health complications related to the pregnant woman, postpartum woman or newborn referred pursuant to sub-section (3). (5) The health institution providing emergency obstetric and newborn services shall arrange a waiting home as prescribed for pregnant women in prescribed conditions. 8. Newborn Health Care: A health institution providing delivery services shall make arrangements for newborn health care according to the prescribed standards. 9. Record of Child's Birth to be Maintained: (1) Every health institution shall maintain a record of the child born in its health institution. (2) Based on the record under sub-section (1), the health institution shall, including the name of the father or mother of the child born in its health institution, provide the father or mother with a certificate of the child's birth. (3) Every health institution shall record, including the number of stillbirths and women who have had abortions or miscarriages. (4) Every health institution shall, if a pregnant woman who came to the health institution for delivery services dies, keep a record of such woman. 10. Right to Receive Family Planning Services: (1) Every person shall have the right to receive information, choice and other services related to family planning. (2) Services prescribed regarding family planning shall be obtained from the prescribed health institution. (3) Other arrangements regarding family planning services shall be as prescribed. 11. Not to Force Family Planning: No one shall be forced to undergo family planning through coercion, threats, inducement, enticement, or without obtaining written consent. 12. Not to Force Use of Contraceptive Means: No one shall be forced to use contraceptive means through coercion, threats, inducement, enticement, or without consent. 13.

Right to Maternity Leave: (1) A woman working in a government, non-government or private organization shall have the right to receive maternity leave with pay for at least ninety-eight days before or after childbirth.

(2) If the maternity leave under sub-section (1) is insufficient for a pregnant woman, such woman shall have the right to receive unpaid leave for up to one year on the recommendation of a specialist doctor. (3) A government, non-government or private organization shall make necessary arrangements for a woman working in its office to breastfeed her child during office hours until the child reaches two years of age. (4) If a pregnant woman gives birth to a stillborn child or the child dies after birth, she shall still receive the leave under sub-section (1). (5) If the wife of a male employee working in a government, non-government or private organization is to give birth, such employee shall receive fifteen days of paternity leave with pay before or after the childbirth. 14. Additional Leave to be Provided: If a woman working in a government, non-government or private organization needs to undergo complex surgery due to reproductive health morbidity as per the opinion of a specialist doctor, the organization shall provide additional leave with pay for at least thirty days before or after such surgery. Chapter-4 Safe Abortion 15.

Right to Have Safe Abortion: A pregnant woman shall have the right to have a safe abortion in the following circumstances:- (a) Pregnancy up to twelve weeks with the consent of the pregnant woman, (b) Pregnancy up to twenty-eight weeks with the consent of such woman if a licensed doctor opines that failure to undergo abortion is likely to risk the life of the pregnant woman, or cause deterioration of her physical or mental health, or that a disabled child will be born, (c) Pregnancy resulting from rape or incest, up to twenty-eight weeks with the consent of the pregnant woman, (d) Pregnancy up to twenty-eight weeks with the consent of a woman infected with HIV or other incurable disease of a similar nature, (e) Pregnancy up to twenty-eight weeks with the consent of the pregnant woman, based on the opinion of the health worker involved in the treatment, if the fetus has a defect that may cause it to be destroyed in the womb or be unable to survive after birth due to genetic defects or other reasons causing fetal disability. 16. Not to Force Abortion: (1) Except for the circumstances mentioned in Section 15, no one shall cause an abortion or perform any act intending to cause an abortion or knowing or having reason to believe that an abortion may occur. (2) No one shall cause an abortion of a pregnant woman through coercion, threats, inducement, or enticement. (3) Any of the following acts shall be considered forcibly causing an abortion:- (a) If an abortion is caused as per sub-section (2), (b) If a pregnant woman miscarries due to some act done out of spite, (c) If assistance is provided in committing any act as per clauses (a) and (b). (4) If, while performing an act to cause an abortion, the child is born alive but dies immediately as a result of such act, it shall be deemed to have caused an abortion for the purposes of this section. 17. Not to Cause Abortion Based on Sex Determination: (1) No one shall perform or cause to be performed any act that determines the sex of the fetus in the womb. (2) No one shall intimidate or threaten a pregnant woman with sex determination of the fetus, or coerce, threaten, induce, entice, or exert undue influence, deception, or force to pressurize or compel her. (3) No abortion shall be performed or caused to be performed based on sex determination as per sub-sections (1) and (2). 18.

Safe Abortion Service: (1) A licensed health worker in a licensed health institution meeting the prescribed standards and qualifications shall provide safe abortion services to a pregnant woman as per Section 15. (2) The appropriate technology and procedure for the service provided pursuant to sub-section (1) shall be as prescribed. (3) A pregnant woman desiring to obtain safe abortion services shall give consent in the prescribed format to the licensed health institution or licensed health worker. (4) Notwithstanding anything written in sub-section (3), in the case of a pregnant woman who is of unsound mind, in a condition unable to give immediate consent, or has not completed the age of eighteen years, her guardian or custodian may give the consent. (5) Notwithstanding anything written in sub-section (4), in the case of a pregnant woman below eighteen years of age, safe abortion services shall be provided keeping in mind her best interests. 19. Confidentiality to be Maintained: (1) The licensed health institution or licensed health worker shall keep confidential all information, documents, and records related to counseling and services provided to the

pregnant woman concerning her reproductive health. (2) Notwithstanding anything written in sub-section (1), such information, documents, and records related to counseling services may be made available in the following circumstances:- (a) If information is requested by an investigation officer or court in the course of investigation and hearing of any case, (b) To quote for the purpose of study, research or monitoring related to safe abortion services without disclosing the identity of the concerned woman, (c) If the concerned woman herself requests records related to this.

Chapter-5 Reproductive Health Morbidity

20. Right to Receive Reproductive Health Morbidity Services: (1) Every woman shall have the right to undergo examination, receive counseling, and obtain treatment related to reproductive health morbidity from a health institution. (2) While providing services pursuant to sub-section (1), it shall be the duty of the concerned health institution or health worker to provide understandable information about the condition of reproductive health morbidity, the care to be followed after surgery, and measures regarding possible risks arising therefrom.

21. Not to Displace: No one shall divorce, expel from home, or displace or cause to be displaced any person citing reproductive health morbidity as a reason.

Chapter-6 Budget Allocation and Grant for Maternity and Reproductive Health

22.

Grant Amount to be Allocated: (1) The Government of Nepal shall, each year through its budget, allocate a grant amount to each local level for the purpose of maternal and reproductive health services. (2) The Provincial Government shall, each year through its budget, allocate a certain amount as a grant to each local level for the purpose of maternal and reproductive health services in accordance with the provincial law. (3) The concerned local level shall, from the amount allocated pursuant to sub-sections (1) and (2), spend on maternal and reproductive health of economically ultra-poor women as prescribed.

23. Local Level to Allocate Budget: (1) The local level shall allocate necessary budget in its annual budget for the purpose of maternal and reproductive health services. (2) While allocating budget pursuant to sub-section (1), it shall be done in a manner that government or community health institutions providing maternal and reproductive health services receive it.

24. Reproductive Health Coordination Committee: (1) To provide necessary suggestions to the Government of Nepal for preparing policies, plans and programs related to safe motherhood and reproductive health services, there shall be a Reproductive Health Coordination Committee as follows:-

Post Description

(a) Secretary, Ministry of Health and Population Chairperson (b) Joint Secretary, Ministry of Women, Children and Senior Citizens Member (c) Joint Secretary, Ministry of Education, Science and Technology Member (d) Director General, Department of Health Services Member (e) Representative, Nepal Medical Council Member (f) Representative, Nepal Nursing Council Member (g) Representative, Nepal Health Professional Council Member (h) Law Officer, Ministry of Health and Population Member (i) Two representatives nominated by the Ministry, including one woman, from among professional institutions/persons engaged in study, research or service provision in the field of reproductive health and reproductive rights Member (j) One representative of the Nepal Health Volunteer Association designated by the Ministry Member (k) Director, Family Welfare Division, Department of Health Services Member-Secretary

(2) The Coordination Committee may invite experts working in the field of reproductive health and reproductive rights to its meetings as needed. (3) The procedure regarding the meeting of the Committee shall be as determined by the Committee itself.

Chapter-7 Offenses and Penalties

25.

Deemed to Have Committed Offense: If any person commits the following acts, they shall be deemed to have committed an offense under this Act:- (a) If deprived of antenatal service under Section 5, (b) If any health institution providing delivery services under Section 6 refuses to provide delivery services, (c) If referred or caused to be referred to another health institution willfully or when treatment is possible at one's own health institution under Section 7, (d) If a health institution fails to provide a birth certificate under Section 9, (e) If family planning is forcibly imposed under Section 11, (f) If contraceptive means are forcibly used under

Section 12, (g) If an abortion is caused under Section 16, (h) If any act determining the sex of the fetus is done contrary to sub-sections (1) and (2) of Section 17, (i) If an abortion is caused based on sex determination under sub-section (3) of Section 17, (j) If confidentiality is breached or caused to be breached contrary to sub-section (2) of Section 19, (k) If displacement is caused or caused to be caused contrary to Section 21, (l) If discrimination is made contrary to Section 29. 26. Penalty: If any person commits or causes to be committed any act deemed an offense under Section 25, depending on the gravity of the offense, the penalty shall be as follows:- (a) For committing or causing to be committed an offense under clauses (a), (b), (c), (d) and (l): imprisonment for up to six months or a fine of up to fifty thousand rupees or both, (b) For committing or causing to be committed an offense under clauses (e) and (f): imprisonment from three months to six months and a fine of up to fifty thousand rupees, (c) For committing or causing to be committed an offense under clauses (g), (h) and (i): penalty as per Section 188 of the National Criminal Code (Code) Act, 2074, (d) For committing or causing to be committed an offense under clause (j): a fine of up to fifty thousand rupees, (e) For committing or causing to be committed an offense under clause (k): imprisonment for up to one year or a fine of up to one hundred thousand rupees or both. 27. Provision for Compensation: The victim of an offense under this Act shall be compensated a reasonable amount as prescribed from the offender. Chapter-8 Miscellaneous 28. Disability-Friendly Services to be Provided: While providing services including family planning, reproductive health, safe motherhood, safe abortion, emergency obstetric and newborn care, reproductive health morbidity under this Act, they shall be adolescent and disability-friendly. 29.

Not to Discriminate: No person shall be discriminated against in any manner in the right to receive services including family planning, reproductive health, safe motherhood, safe abortion, emergency obstetric and newborn care, reproductive health morbidity and menstrual services on grounds of origin, religion, color, caste, ethnicity, gender, community, profession, occupation, sexual and gender identity, physical or health condition, disability, marital status, pregnancy, ideological belief, being infected or at risk of infection with any disease or virus, condition of reproductive health morbidity, personal relationship or any other similar grounds. 30. Provision for Shelter Home: For the protection of the reproductive health of mentally incapacitated, rejected by family or relatives, or raped women, the Federation, Province and Local Level shall, in mutual coordination, make necessary arrangements to keep such women in shelter homes. 31. Can Issue Directives: (1) The Ministry may issue necessary directives to health institutions to provide reproductive health services. (2) It shall be the duty of the concerned health institution to comply with the directives received pursuant to sub-section (1). 32. Service Fee: (1) Government or government-aided health institutions shall provide reproductive health services free of cost. (2) Private, non-government and community health institutions may charge service fees as prescribed for providing reproductive health services. (3) Notwithstanding anything written in sub-section (2), private, non-government and community health institutions and health workers shall make service fees affordable and shall provide free services (quota) as prescribed for persons unable to pay the service fee. 33. Postnatal Allowance: The Government of Nepal shall provide a postnatal allowance as prescribed to ultra-poor postpartum women. 34. Protection for Acts Done in Good Faith: Notwithstanding anything written elsewhere in this Act, no legal action of any kind shall be initiated against any health institution or health worker for providing reproductive health services in good faith. 35. Authority to Hear Cases: (1) The authority for initial proceedings and adjudication of cases of offenses under this Act shall be with the District Court of the concerned district. (2) A person dissatisfied with the penalty or order made by the District Court under sub-section (1) may appeal to the concerned High Court. 36. Government of Nepal to be Plaintiff: (1) In cases under Section 25, the Government of Nepal shall be the plaintiff. (2) Cases under Section 25 shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074. 37.